

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date: _____

Office of the District Attorney General, the judicial district named on the sender's own judgment (synthetic sample district)
[DISTRICT ATTORNEY GENERAL'S OFFICE MAILING ADDRESS – SENDER CONFIRMS WITH THAT OFFICE]

RE: Request under T.C.A. § 40-32-108(e) that your office prepare a petition for expunction of a conviction under T.C.A. § 2-19-107, pursuant to T.C.A. § 40-32-107(c)

To the Office of the District Attorney General for the judicial district named on the sender's own judgment (synthetic sample district):

My name is JOHN DOE. I am writing to ask your office to prepare a petition for expunction and a proposed order under T.C.A. § 40-32-108(e), so that I can then file them with the clerk of the convicting court under T.C.A. § 40-32-108(a). I am not asking your office to reach any conclusion for me. I am asking it to prepare the instruments the statute assigns to it, and I set out below the facts I rely on so that your office can make its own determination.

The conviction is in the court named on the sender's own judgment (synthetic sample court), in the judicial district named on the sender's own judgment (synthetic sample district). The case number as I read it from my own record is the case number shown on the sender's own judgment (synthetic sample answer). The offence and the exact statutory section as they appear on the judgment are: illegal registration or voting, as written on the judgment (synthetic sample answer). My state control number is [STATE CONTROL NUMBER – SENDER READS IT FROM THEIR OWN CRIMINAL HISTORY AND ENTERS IT HERE BEFORE SENDING].

I rely on T.C.A. § 40-32-107(c), which reaches a conviction for illegal registration or voting under T.C.A. § 2-19-107 and no other elections or fraud provision. My own answers on each condition are: on whether the conviction is under that section – the judgment names that section (synthetic sample answer); on the date I completed the sentence – the completion date shown on the sender's own record (synthetic sample answer); on whether fifteen years have elapsed since that date, measured as at the date of this letter – more than fifteen years have elapsed (synthetic sample answer); on whether every fine, restitution amount, court cost and other assessment is paid and every term of imprisonment, probation and condition of release completed – every amount is paid and every term and condition completed (synthetic sample answer); on whether the offence occurred prior to any conviction for an offence that is ineligible for expunction – the offence occurred before any conviction for an ineligible offence (synthetic sample answer); and on whether I have previously been granted expunction under subsection (a), (b) or (c) – I have not previously been granted expunction under any of those subsections (synthetic sample answer).

I record one thing I am not asking for. I understand that expunction under this subsection is not restoration of my voting rights, that restoration is a separate remedy under separate machinery, and that nothing in this request asserts how the two interact. I also understand that this subsection is not reached by the rebuttable presumption, so the court weighs my interest against the best interests of justice and public safety.

I understand that once your office prepares the petition and the proposed order, I file them with the clerk of the convicting court and pay the appropriate clerk's fee, and

that the clerk then serves the petition on your office. I understand that this letter is not the petition, that it starts no statutory clock, and that nothing in it binds your office to my reading of my own record. Please send your written response to my mailing address shown at the top of this letter.

ENCLOSURES

- [COPY OF THE JUDGMENT SHOWING THE OFFENCE AND ITS EXACT STATUTORY SECTION – SENDER ENCLOSES A COPY ONLY]
- [COPY OF WHATEVER RECORD THE SENDER HOLDS SHOWING THE DATE THE SENTENCE WAS COMPLETED – SENDER ENCLOSES A COPY ONLY]

Sincerely,

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date signed: _____

[NOTE: The sender signs and dates this letter personally before sending.]

Prepared by the sender using LegalEase RCAP. This is not an official court form.